

relies on) to seek to carry that point at trial. The bulky details of the incorporation into the Japanese model vehicle will add little if any further probative value.

Honda has not requested sanctions.

Courtroom Clerk's Session

22. 1:30 PM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

ISSUE CONFERENCE WITH SETTLEMENT MENTOR

FILED BY:

TENTATIVE RULING:

All parties and counsel to appear.

Law & Motion

Add On

23. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

TO BE RELIEVED AS COUNSEL RE: ATTORNEY DEVON M. TURTLE ANDERSON

FILED BY:

TENTATIVE RULING:

Devon Anderson and Skepsis Legal Solutions move to be relieved as counsel for Daniel Jensen. The motion is **granted**, but effective only after conducting today's settlement conference and any follow-on settlement proceedings.

A motion of this kind would typically call for an in-person, in-chambers confidential hearing to consider grounds for withdrawal, so as not to reveal any attorney-client confidences to other parties or the world in general. Here, however, both client and lawyers are in Idaho, and the client has stated his position in writing in a public filing. Accordingly, if this tentative ruling is contested, the Court will allow the attorneys and the client to appear by Zoom, with the caution that their statements and arguments will not be confidential. Mr. Jensen is deemed to have waived any privilege or confidentiality by telling his side of the attorney-client story publicly.

The law firm, quite properly, states its grounds for withdrawal in vague and general terms, stating that irreconcilable differences concerning the conduct of the defense make continued representation “no longer possible consistent with counsel’s ethical obligations” (which is sometimes code language for the client insisting on actions that the lawyers consider unethical). Mr. Jensen’s opposition and declaration do not take that on directly, but it is readily apparent from the content and tone of those documents that the attorney-client relationship is in poor repair indeed. Frankly, the Court does not see how it is likely that Jensen’s defense can be conducted advantageously in light of the obvious discord and distrust between client and attorney.

Moreover, Jensen himself states that Skepsis agreed to stay on as counsel only for the limited purpose of trying to settle, a limitation that Jensen apparently agreed to at the time -- hence the Court’s direction that Skepsis should see Jensen through this afternoon’s settlement conference.

Jensen points out that trial in this case is set for next month. However, Jensen is in default, and declined to authorize Skepsis to move for relief from that default. Hence, with or without an attorney, Jensen will not be allowed to participate in the trial anyway. Moreover, as the preceding paragraph shows, Skepsis’s continued representation to date has not included any undertaking to try the case. If Jensen is of the view that Skepsis is at fault in allowing him to fall into default (which his papers hint at but do not show), then he can sue Skepsis for malpractice; but it is not an appropriate remedy for him to force them to continue to represent him.